

ASCII MASTER FLOW – PANEL 1/10: Part III as an operating architecture, not a list

PART III

- +-- GATEKEEPERS: Article 12 defines State; Article 13 controls law
- +-- EQUALITY: Articles 14-18
- +-- FREEDOMS: Articles 19-22
- +-- EXPLOITATION: Articles 23-24
- +-- RELIGION: Articles 25-28
- +-- CULTURE / EDUCATION: Articles 29-30
- +-- REMEDY: Article 32
- +-- SAVINGS / SPECIAL CONTROL: Articles 31A-31C and 33-35

REACH

vertical: person versus State

horizontal: express private reach in Articles 15(2), 17, 23 and 24

positive duty: State may need to protect rights against private domination

RIGHT = protected claim + justified limit + effective remedy.

ASCII MASTER FLOW – PANEL 2/10: Article 12 and 13: who is bound and what becomes void

ARTICLE 12 INQUIRY

Union/State organs + local authorities + other authorities

- > deep and pervasive control?
- > financial, functional and administrative domination?
- > public importance tied to government?
- > Pradeep Kumar Biswas (2002): cumulative instrumentality inquiry

ARTICLE 13 INQUIRY

pre-Constitution inconsistent law -> void to extent of inconsistency

post-Constitution abridging law -> prohibited and void to that extent

"law" includes ordinance, rule, regulation, notification, custom and usage

DOCTRINES

severability | eclipse | waiver generally unavailable | prospective overruling

AMENDMENTS: Article 13(4) + Article 368 -> Kesavananda Bharati (1973) basic-structure review.

ASCII MASTER FLOW – PANEL 3/10: Equality code and reservation doctrine

ARTICLE 14

equality before law + equal protection

classification = intelligible differentia + rational nexus

E.P. Royappa (1973)/Maneka Gandhi (1978) = arbitrariness is antithetical to equality

ARTICLES 15-16

non-discrimination + enabling substantive-equality clauses

Champakam Dorairajan (1951) -> First Amendment -> Article 15(4)

Indra Sawhney (1992) -> creamy layer, ordinary 50% ceiling, no 16(4) promotion

77th/81st/82nd/85th -> promotion, backlog, qualification and seniority tools

M. Nagaraj (2006)/Jarnail Singh (2018) -> inadequacy data and Article 335 efficiency controls

103rd + Janhit Abhiyan (2022) -> EWS upheld by majority

Davinder Singh (2024) -> evidence-based SC sub-classification allowed, not mandated

ARTICLES 17-18 abolish untouchability and reject titles with narrow exceptions.

ASCII MASTER FLOW – PANEL 4/10: Article 19: six freedoms and restriction-ground discipline

ARTICLE 19(1), CITIZENS ONLY

speech | assembly | association | movement | residence | profession

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valid law + listed ground + reasonableness + proportionality

SPEECH GROUNDS UNDER 19(2)

sovereignty/integrity | State security | friendly relations | public order

decency/morality | contempt | defamation | incitement

ANCHORS

press and right to know derive from 19(1)(a)

Shreya Singhal (2015): 66A void; advocacy differs from incitement

Anuradha Bhasin (2020): shutdown orders require publication and proportionality

Kedar Nath Singh (1962): sedition read toward incitement

BNS section 152 requires exact analysis, not a claim that sedition was merely renamed.

ASCII MASTER FLOW – PANEL 5/10: Articles 20-22: criminal process, dignity and detention

ARTICLE 20: ALL PERSONS

- +-- no retrospective criminal offence or enhanced penalty
- +-- no prosecution and punishment twice for same offence
- +-- no compelled testimonial self-incrimination by an accused

ARTICLE 21

A.K. Gopalan (1950) compartmentalisation -> R.C. Cooper (1970) linkage

- > Maneka Gandhi (1978): just, fair and reasonable procedure
- > dignity family: privacy, livelihood, legal aid and speedy trial

K.S. Puttaswamy (2017) test: legality + legitimate aim + proportionality + safeguards

ARTICLE 22

ordinary arrest: grounds + lawyer + magistrate within 24 hours

preventive detention: distinct safeguards; no-board period remains three months

44th Amendment's proposed two-month substitution has not commenced.

ASCII MASTER FLOW – PANEL 6/10: Exploitation, religion and minority autonomy

ARTICLES 22-24

trafficking and forced labour prohibited; minimum-wage coercion can implicate 23
children below 14 barred from factories, mines and hazardous employment under 24

ARTICLES 25-28

individual conscience and profession, practice and propagation

Article 26 denomination management

limits: public order, morality, health and other FRs

State may regulate secular activity and enact social reform

ARTICLES 29-30

29(1): any section of citizens with distinct language, script or culture

29(2): admission non-discrimination in covered institutions

30: religious and linguistic minorities may establish and administer institutions

Autonomy survives regulation; regulation cannot erase institutional identity.

ASCII MASTER FLOW – PANEL 7/10: Article 32: writ remedies and the enforcement ladder

RIGHT VIOLATED

+-- ARTICLE 32 -> SUPREME COURT for Fundamental Rights
+-- ARTICLE 226 -> HIGH COURT for FRs and other legal rights

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WRIT CHOICE

HABEAS CORPUS	produce detained person; test detention
MANDAMUS	compel public duty
PROHIBITION	stop jurisdictional excess before completion
CERTIORARI	quash completed order for jurisdictional or legal error
QUO WARRANTO	test authority to hold public office

Article 32 is itself a Fundamental Right; legal fit still matters.

Article 226 is territorially and remedially wider, not constitutionally inferior.

ASCII MASTER FLOW – PANEL 8/10: Saving clauses, property and amendment doctrine

ARTICLE 31A

specified reform categories protected from Article 14/19 attack

ARTICLE 31B + NINTH SCHEDULE

listed-law protection

-> I.R. Coelho (2007): post-24 Apr 1973 insertions face basic-structure review

ARTICLE 31C

original protection for genuine Article 39(b)/(c) laws against 14 and 19

-> Kesavananda Bharati (1973) limits immunity

-> Minerva Mills (1980) defeats extension to all DPSPs

-> Property Owners Association (2024) preserves original 31C

-> not every private asset is automatically a community resource

44th Amendment: Article 31 leaves Part III

Article 300A: every person; deprivation only by authority of law.

ASCII MASTER FLOW – PANEL 9/10: Article 358 and 359: emergency effects are not the same

ARTICLE 358

automatic operation

Article 19 only

war/external-aggression Emergency

changes State's Article 19 limit

post-44th nexus conditions apply

ARTICLE 359

Presidential order required

specified rights named in order

Emergency while order operates

suspends enforcement, not text

Articles 20 and 21 cannot be included

ARTICLES 33-35

Parliament may tailor FRs for forces and specified services;

may indemnify martial-law acts and has exclusive competence over listed matters.

MARTIAL LAW != NATIONAL EMERGENCY

local exceptional coercive control differs from constitutional proclamation.

No rule says all Fundamental Rights automatically disappear in Emergency.

ASCII MASTER FLOW – PANEL 10/10: Exact 10/15-mark architecture: liberty, limitation and remedy

10 MARKS / 150 WORDS

1. Identify claimant, State action and exact Article.
2. State citizen/person reach, vertical/horizontal effect and duty.
3. Apply protected interest -> listed limit -> proportionality.
4. Add one controlling case and Article 32 or 226 remedy.
5. Conclude on validity with a narrow qualification.

15 MARKS / 250 WORDS

1. Frame Part III through gatekeepers, rights, limits, remedies and savings.
2. Explain the Article family with clause-level accuracy.
3. Apply Article 14 fairness and Article 19/21 proportionality where relevant.
4. Integrate rights-DPSP harmony through Minerva Mills (1980).
5. Test amendment/immunity through Kesavananda Bharati (1973) and I.R. Coelho (2007).
6. Distinguish Article 358 from 359 if Emergency is involved.
7. Conclude: governance requires legality, justification and remedy.